

Amba Steels v. M.D. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 17 November 2018 · Writ - C No. 48191 of 2008 · **Writ dismissed following Dev Prayag Paper Mill.**

HEADNOTE

Writ challenging an additional-security demand and clause 4.20(1) of the Electricity Supply Code, 2005 as ultra vires section 47(5) of the Electricity Act, 2003 dismissed in terms of Dev Prayag Paper Mill (Writ-C No. 30898 of 2016, 21.3.2017).

FACTUAL SUMMARY

Amba Steels petitioned against Paschimanchal Vidyut Vitran Nigam Ltd. over a demand for additional security for electricity supply, with a warning that non-payment within the stipulated period would attract action in accordance with law. It also challenged clause (1) of para 4.20 of the Electricity Supply Code, 2005—insofar as it lets the consumer opt only as and when the distribution licensee provides a choice—as ultra vires section 47(5) of the Electricity Act, 2003. Counsel accepted that identical matters had already been dismissed.

HOLDING-UNITS

INTERPLAY · UP-2005::4.20

additional security; 4.20(1) choice language vis-à-vis s.47(5)

HOLDING

The writ challenging the additional-security demand and clause (1) of para 4.20 of the Electricity Supply Code, 2005 as ultra vires section 47(5) of the Electricity Act, 2003 is dismissed in terms of the order dated 21.3.2017 in Writ-C No. 30898 of 2016 (M/S Dev Prayag Paper Mill (Pvt.) v. State of U.P.). ¶ 1

PRINCIPLE TAGS

additional-security Writ challenging an additional-security demand and clause 4.20(1) of the Electricity Supply Code, 2005 as ultra vires section 47(5) of the Electricity Act, 2003 dismissed in terms of Dev Prayag Paper Mill (Writ-C No. 30898 of 2016, 21.3.2017). ¶ 1

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>M/S Dev Prayag Paper Mill (Pvt.) vs. State of U.P. and 3 others</i> Writ-C No. 30898 of 2016 (21.3.2017)			1	Referred